

Orissa Administrative Service, Group A (Recruitment to Senior Branch) Rules, 1979

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[Rule ORISSA-ADMINISTRATIVE-SERVICE-GROUP-A-RECRUITMENT-TO-SENIOR-BRANCH-RULES-1979 of 1979](#)

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[Orissa Administrative Service, Group A \(Recruitment to Senior Branch\) Rules, 1979](#)

[Published vide Notification No. 16001 - Gen. 21st June 1979, O.G.E. No. 1421 dated 9.7.1979](#)

[No. 16001 - Gen. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, the Governor of Orissa is pleased to make the following Rules for regulation of recruitment by promotion to the Orissa Administrative Service, \[Group A\]](#)

[\[Substituted by O.G.E. No. 1062 dated 9.7.2002.\]](#)

[\(Senior Branch\), namely :](#)

[1.](#)

[Short title and Commencement.](#)

(1)

These rules may be called the Orissa Administrative Service [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Recruitment to Senior Branch) Rules, 1979.

(2)

They shall come into force with effect from their publication in the Orissa Gazette.

2.

Definitions.

(1)

In these Rules unless the context otherwise requires-

(a)

'Commission' means the Orissa Public Service Commission;

(b)

'Government' means the State Government of Orissa;

(c)

'Probationer' means a person appointed to the Service on probation and shall include a person appointed to officiate in the Orissa Administrative Service, '[Group A] prior to commencement of these Rules.

(d)

'Service' means the Orissa Administrative Service, '[Group A] (Senior Branch).

(e)

'Selection Board' means the Board constituted under Rule 4 of this Rule.

(f)

'Select List' means the list finally approved by Government under Rule 8.

(g)

["year" means a calendar year]

[Inserted by O.G.E. No. 1062 dated 9.7.2002.]

(2)

All other words and expressions which have not been defined in these rules shall have the same meaning respectively assigned to them in the Orissa Service Code.

3.

Method of Recruitment.

- Recruitment to the Service shall be made by Government by promotion from among the members of the Orissa Administrative Service, [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Junior Branch) in accordance with these Rules.

4.

Constitution of Selection Board.

- (I) There shall be constituted a Board for selection of officers for promotion to the Orissa Administrative Services - [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Senior Branch).

(II)

[The Selection Board shall consist of :

[Substituted by G.A. Department Notification No. 12488 dated 20.10.1983.]

(a)

Chief Secretary to Government

Chairman

(b)

Member, Board of Revenue

Member

(c)

All Revenue Divisional Commissioners

Member

(d)

Special/Additional Secretary, General Administration

Department

Member-Secretary]

(III)

The Chief Secretary to Government shall preside over the meeting of the Selection Board.

(IV)

The recommendation of the Selection Board shall be valid and can be operated upon notwithstanding the absence of any one or more of its Members other than the Chairman provided the Member so absenting was duly invited to attend the meeting and the majority of the Members constituting the Selection Board are present in the meeting.

(V)

[* * *]

[Omitted by G.A. Department Notification No. 12488 dated 20.10 1983.]

5.

[Selection by the Board.

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(1)

The Selection Board shall ordinarily meet before the 31st day of January of each year and prepare a list of such members of Orissa Administrative Service, Group A (Junior Branch) who are considered by them to be suitable for appointment to the service.

(2)

The Selection Board for preparation of the list shall follow the provisions of the Orissa Civil Services (Zone of Consideration for Promotion) Rules, 1988 and the Orissa Civil Services (Criteria for Promotion) Rules, 1992 :

(3)

The Selection, Board shall not consider the case of a member of the Orissa Administrative Service, Group A (Junior Branch) unless, on the first day of January of the year or when it meets, he is substantive in service in the Orissa Administrative Service, Group A (Junior Branch) or has completed ten years of service in the Orissa Administrative Service, Group B and Orissa Administrative Service, Group A (Junior Branch) taken together :

Provided that a member of Orissa Administrative Service, Group A (Junior Branch) who has already been appointed as probationer in the Orissa Administrative Service, Group A (Senior Branch) shall not be considered by the Selection Board for appointment to the,service.]

6.

Consultation with the Commission.

- The list prepared by the Selection Board under Rule 5 shall be forwarded to the Commission in such manner as may be prescribed by the Government from time to time for concurrence together with the following documents, namely r

(i)

The records of all Members of the Orissa Administrative Service, [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Junior Branch) included in the list;

(ii)

The records of all Members of the Orissa Administrative Service [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Junior Branch) who are proposed to be superseded by the recommendations made in the list along with the reasons as recorded by the Selection Board for such supersession.

7.

Recommendations of the Commission.

(1)

The Commission shall consider the list prepared by the Selection Board along with other documents received from the Government and unless it considers any change necessary, approve the list.

(2)

The Commission shall follow the principles, set out in Rule 5 in making their recommendations :

Provided that if the Commission recommends supersessions of any Senior member of the Orissa Administrative Service, [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Junior Branch) by any of his juniors it shall assign specific reasons for the same.

8.

Select list.

- The recommendations of the Commission made in accordance with Rule 7 shall be placed before the Government and after approval by Government with modifications, if any, shall form the Select List for appointment to the Service. The Select List shall ordinarily be in force until a fresh Select List is prepared :

Provided that the Government may, in consultation with the Commission for a grave lapse in the conduct or deterioration in the standard of performance of the duties on the part of any Member of the Orissa Administrative Service, [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Junior Branch) included in the Select list remove the name of the Member from such list before he is appointed to the Service.

9.

Recruitment to the Service.

(1)

Every person recruited to the Service . shall be appointed on probation for a period of one year;

Provided that the Government may; if they think fit in any case or class of cases, extend the period of probation.

(2)

The appointment of a probationer may, for good and sufficient reasons, be terminated by Government at any time without previous notice during the period of probation including extension of such period if any, and upon such termination the officer shall be reverted to the Orissa Administrative Service, [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Junior Branch).

10.

Appointment to the Orissa Administrative Service, [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Senior Branch).

(1)

Appointment to the Service shall be made in the order in which the names appear in the Select List.

(2)

The inter se seniority of officers appointed to the Service shall be determined by the order indicated in the Select List.

11.

Reservation for Scheduled Castes and Scheduled Tribes.

- Notwithstanding anything contained in these Rules, vacancies shall be reserved for promotion in favour of candidates belonging to Scheduled Castes and Scheduled Tribes in accordance with the existing laws in force.

12.

Confirmation.

- A probationer upon completion of the period of probation to the satisfaction of Government shall be eligible for confirmation against a permanent post in the service.

13.

Relaxation.

- Whenever it is considered necessary in the special circumstances for the interest of the public service, the State Government may, in consultation with the Commission, relax all or any of the provisions of these Rules.

14.

Repeal and Savings.

- The Orissa Administrative Service, [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Recruitment by Promotion) Rule, 1957 and the Orissa Administrative Service, [Group A]

[Substituted by O.G.E. No. 1062 dated 9.7.2002.]

(Appointment by Promotion) Regulations, 1957 are hereby repealed:

Provided that any order made or action taken under the Rules and Regulations so repealed shall be deemed to have been made or taken under the corresponding provisions of these Rules.

15.

Interpretation.

- If any question arises relating to the interpretation of these Rules it shall be referred to Government for decision.

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